

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #01	CCRB Case #: 201504141	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/15/2015 12:00 AM, Tuesday, 05/19/2015 10:15 PM	Location of Incident: Glenwood Road and East 38th Street	18 Mo. SOL 11/19/2016	Precinct: 67		
Date/Time CV Reported Fri, 05/22/2015 2:15 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/22/2015 2:15 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Raymond Higgins	28788	941338	PBBS SU
2. POM Hugh Herbert	01343	930337	PBBS SU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andreas Sargent	24928	943785	PBBS SU

Officer(s)	Allegation	Investigator Recommendation
A . POM Hugh Herbert	Abuse: PO Hugh Herbert stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Raymond Higgins	Abuse: PO Raymond Higgins stopped the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Hugh Herbert	Abuse: PO Hugh Herbert questioned § 87(2)(b)	C . Unsubstantiated
D . POM Hugh Herbert	Abuse: PO Hugh Herbert searched § 87(2)(b)	D . Unsubstantiated
E . POM Hugh Herbert	Abuse: PO Hugh Herbert frisked § 87(2)(b)	E . Unsubstantiated
F . POM Hugh Herbert	Abuse: PO Hugh Herbert refused to provide his name and shield number to § 87(2)(b)	F . Unsubstantiated
G . POM Hugh Herbert	Abuse: PO Hugh Herbert searched the car in which § 87(2)(b) was an occupant.	G . Unsubstantiated

Case Summary

On May 19, 2015, at approximately 10:15 p.m., § 87(2)(b) vehicle was stopped by PO Hugh Herbert, PO Raymond Higgins, and PO Andreas Sargent, of Patrol Borough Brooklyn South Specialized Units, in the vicinity of Glenwood Road and East 38th Street in Brooklyn (**allegations A and B**). PO Herbert requested § 87(2)(b) documents and asked if he had any weapons in the car (**allegation C**). § 87(2)(b) replied that he had utility knives for carpentry and electrical work in the center console. After checking § 87(2)(b) documents in his RMP, PO Herbert returned and instructed § 87(2)(b) and his fiancée, § 87(2)(b) to get out of the car. After § 87(2)(b) exited his car, he was allegedly searched and frisked by PO Herbert (**allegations D and E**). § 87(2)(b) asked PO Herbert for his name and shield number after he was searched and frisked, but PO Herbert allegedly flashed his shield too quickly for § 87(2)(b) to read it or write anything down (**allegation F**). PO Herbert then allegedly searched § 87(2)(b) vehicle (**allegation G**). § 87(2)(b) was not summonsed or arrested.

There was no video available for this incident.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

Mediation, Civil and Criminal Histories

§ 87(2)(b) declined the option to mediate this complaint § 87(2)(b)
§ 87(2)(b)

As of August 17, 2015, § 87(2)(b) had not filed a Notice of Claim with the Office of the New York City Comptroller [see 01 Board Review].

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the second CCRB complaint filed by § 87(2)(b). In his prior complaint, § 87(2)(b) allegations that his vehicle was stopped, and that both his person and vehicle were searched, were exonerated [see 03 Board Review].

This is the ninth CCRB case filed against PO Herbert during his 13 year tenure. In case 201506328, it is alleged that PO Herbert stopped an individual's vehicle and spoke discourteously. That case is pending board review. The recommended dispositions are unsubstantiated.

This is the sixth CCRB case filed against PO Higgins during his nine year tenure. § 87(2)(g)
§ 87(2)(g).

Potential Issues

§ 87(2)(b) and § 87(2)(b) and PO Sargent testified that this incident occurred on May 15, 2015. [see 04-07 Board Review]. However, the memo books and testimonies of PO Herbert and

PO Higgins suggested that the incident occurred on May 19, 2015 [see 08-11 Board Review]. The Stop, Question, and Frisk Report filled out by PO Higgins also listed the incident date as May 19, 2015. § 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Allegation A) Abuse of Authority: PO Hugh Herbert stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B) Abuse of Authority: PO Raymond Higgins stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that he was driving his 2004 Acura RL on Albany Avenue when he realized that he was being followed by a silver unmarked RMP. He did not know that it was a police vehicle at that time. § 87(2)(b) denied committing any VTL violations. His windows were down, and he was not speaking loudly with § 87(2)(b) or playing music loudly. The RMP followed § 87(2)(b) for approximately eight blocks before pulling him over at Glenwood Road and East 38th Street. When he approached § 87(2)(b) vehicle, PO Herbert, who § 87(2)(b) recognized as an officer who had harassed him near his home two months prior to this incident by pointing, laughing, and staring, informed § 87(2)(b) that he had been pulled over for making a “short turn.” § 87(2)(b) § 87(2)(b), did not know what a “short turn” was but did not argue with PO Herbert. § 87(2)(b) was not issued a summons [see 04 Board Review].

§ 87(2)(g)

PO Herbert denied having any previous knowledge of or interaction with § 87(2)(b). PO Herbert testified that he and his partners observed § 87(2)(b) fail to yield to pedestrians as he turned left from Utica Avenue onto Glenwood Road. According to PO Herbert, § 87(2)(b) crossed into the oncoming traffic lane as he turned in order to avoid the pedestrians. PO Herbert did not know what a “short turn” was and denied using the term during the incident. PO Herbert’s only reason for stopping § 87(2)(b) was the aforementioned failure to yield to pedestrians. PO Herbert used his discretion and did not issue a summons because § 87(2)(b) was very cooperative [see 10 Board review].

§ 87(2)(g)

PO Higgins did not have any particular reason that § 87(2)(b) was not issued a summons other than the fact that he has the discretion to warn and admonish [see 09 Board Review].

PO Sargent testified that he sat in the rear seat of their unmarked RMP, and he was looking out of the sides of the vehicle when the alleged traffic infraction occurred. He did not witness the

infraction himself, but he believed that PO Herbert and PO Higgins observed § 87(2)(b) disobey a steady red light. PO Sargent did not know why neither PO Herbert nor PO Higgins issued a summons to § 87(2)(b) [see 07 Board Review].

§ 87(2)(g)

Based on the above, it is recommended that allegations **A and B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO Hugh Herbert questioned § 87(2)(b)

§ 87(2)(b) testified that PO Herbert approached his vehicle, requested IDs from both occupants, and asked § 87(2)(b) if he had any weapons on his person. § 87(2)(b) denied having any weapon on his person but informed PO Herbert that he had three utility knives, which he used for carpentry and electrical work, in the closed center console. After a brief discussion unrelated to the utility knives, PO Herbert walked back to his RMP with the IDs and left PO Higgins and PO Sargent at § 87(2)(b) vehicle [see 04 Board Review].

§ 87(2)(b) stated that PO Herbert asked § 87(2)(b) for his license. After looking at it, he asked § 87(2)(b) to get out of the car. § 87(2)(b) made no mention of PO Herbert asking § 87(2)(b) about weapons [see 05 Board Review].

PO Herbert testified that he asked § 87(2)(b) who was inside of his vehicle, for his license and registration and was speaking with him when PO Higgins gestured to PO Herbert, mouthed that § 87(2)(b) had a knife on him, and pointed to his own right pocket. PO Higgins did not specify what type of knife he observed. He denied that PO Sargent relayed any of this information to him. PO Herbert asked § 87(2)(b) twice if there were any knives or guns in the car, and § 87(2)(b) replied no both times [see 11 Board Review].

PO Higgins, who was at the passenger's side of § 87(2)(b) vehicle, stated that he observed what he believed to be a red razor blade or utility knife clipped to § 87(2)(b) right front pants pocket. He saw only half of the knife, which he believed was a utility knife that was three to four inches long. PO Higgins believed that the knife he observed was legal to possess. As § 87(2)(b) was taking documents out of his back pocket, PO Higgins observed him reach to his right front pocket and do something with the knife. PO Higgins considered this a nervous movement. After that, PO Higgins did not see the knife and began to fear for his safety. PO Higgins moved toward PO Sargent, meeting him at the driver's side rear quarter panel, and informed him that § 87(2)(b) had a knife which had disappeared from view. PO Sargent relayed the information to PO Herbert, who instructed § 87(2)(b) to step out of the vehicle [see 09 Board Review].

PO Sargent denied observing the knife or its removal from § 87(2)(b) pocket himself, but his testimony concerning the relay of information was generally consistent with PO Higgins' [see 07 Board Review].

An officer may question an individual when he has founded suspicion that criminality is afoot (**People v. DeBour**, 40 N.Y.2d 210) [see 15 Board Review].

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: PO Hugh Herbert searched § 87(2)(b)

Allegation E – Abuse of Authority: PO Hugh Herbert frisked § 87(2)(b)

Allegation F – Abuse of Authority: PO Hugh Herbert refused to provide his name and shield number to § 87(2)(b)

Allegation G – Abuse of Authority: PO Hugh Herbert searched the vehicle in which § 87(2)(b) was an occupant.

According to § 87(2)(b) PO Herbert returned approximately three minutes later and instructed § 87(2)(b) and § 87(2)(b) to exit their vehicle. Both occupants complied, and § 87(2)(b) was allegedly searched by PO Herbert immediately after he stepped out of the car. § 87(2)(b) described that PO Herbert placed his hands into § 87(2)(b) pants pockets and removed an e-cigarette and some papers. § 87(2)(b) pockets also contained keys, a pen, eye drops, and a small tube of Vaseline. § 87(2)(b) denied having anything clipped to his belt. Following the search, PO Herbert frisked § 87(2)(b) from head to toe. The search and frisk lasted approximately three minutes. § 87(2)(b) was not frisked or searched during the incident.

After the alleged search and frisk, § 87(2)(b) asked PO Herbert for his name and shield number. PO Herbert, who had his shield pinned backwards on its chain, allegedly flashed his shield toward § 87(2)(b) very quickly. § 87(2)(b) was unable to see the information or write anything down. At the time of his interview, § 87(2)(b) did not know PO Herbert's name or shield number.

Following the frisk, PO Herbert told § 87(2)(b) and § 87(2)(b) to go to the back of their car with PO Higgins and PO Sargent. PO Herbert then searched § 87(2)(b) car. § 87(2)(b) observed PO Herbert search under the steering wheel, under both front seats, the glove compartment, the center console, and the rear of the car. § 87(2)(b) glanced back and saw PO Herbert place items from the center console into his back pocket. When PO Herbert finished 10 to 12 minutes later, he told § 87(2)(b) and § 87(2)(b) to get back into the car and wait. § 87(2)(b) noticed that his registration had not been returned. PO Herbert returned it upon request, told § 87(2)(b) not to mention this incident to anyone, and then left the scene. § 87(2)(b) returned to his car and found that his camouflage folding utility knife and \$50.00 were missing

from his center console [see 04 Board Review]. An IAB spinoff was created to address the missing property allegations.

§ 87(2)(b) stated that PO Higgins reviewed § 87(2)(b) documents, ordered him out of the car, and then asked § 87(2)(b) to exit the car and provide her ID. § 87(2)(b) was unable to see if any officer went into § 87(2)(b) pockets or patted him down. As PO Herbert searched the vehicle, § 87(2)(b) observed him put his hands in the creases of the seats and the doors as well as the center console, which consisted of two closed compartments. § 87(2)(b) later informed § 87(2)(b) that he had a knife stored in one of those compartments, though she made no mention of whether or not it was removed or returned. She also believed that he searched the glove compartment because when she returned to the car, it looked as if someone had moved its contents around. § 87(2)(b) made no mention of § 87(2)(b) asking the officers for their names or shield numbers [see 05 Board Review].

PO Herbert stated that he began to fear for his safety after he learned that § 87(2)(b) had a weapon on his person but lied about being in possession of it. A few seconds later, PO Herbert asked § 87(2)(b) to exit the car. § 87(2)(b) opened the door and removed his seatbelt with his right hand. As § 87(2)(b) removed the seatbelt, he transferred it from his right hand to his left, and PO Herbert believed that he also removed the knife from his right pocket with his right hand and dropped it between his seat and center console. He believed this because § 87(2)(b) removed the seatbelt with his left hand as his right hand went between the seat and center console. PO Herbert did not see the knife until later in the incident. PO Herbert frisked § 87(2)(b) pants pockets, waistband, and patted him down to his ankles when he exited the car because he had a knife on him before dropping it and had lied about being in possession of it. PO Herbert did not recover anything during the frisk. He denied searching § 87(2)(b) pockets.

After frisking § 87(2)(b) and failing to retrieve the knife, PO Herbert ordered § 87(2)(b) and § 87(2)(b) to the rear of the vehicle with PO Higgins and PO Sargent. PO Herbert then searched the general area where he believed that § 87(2)(b) had discarded the knife. He recovered a folding utility knife from that area, which was between the driver's seat and the center console. PO Herbert described the knife as a "sheetrock knife," which was legal to possess. PO Herbert denied searching the center console. He exited the vehicle and spoke with § 87(2)(b) who twice denied dropping the knife before eventually acknowledging that he did so. § 87(2)(b) also acknowledged having three knives in the car. PO Herbert returned the knife he recovered during the search and allowed § 87(2)(b) back into his car, at which point § 87(2)(b) requested his name and shield number. PO Herbert provided the information verbally and also showed § 87(2)(b) his shield, which he denied was pinned backwards [see 11 Board Review].

PO Higgins § 87(2)(g) testified that PO Herbert frisked but did not search § 87(2)(b). According to PO Higgins, § 87(2)(b) asked for both his and PO Sargent's name and shield number. Both provided the information to § 87(2)(b). PO Higgins did not hear § 87(2)(b) ask PO Herbert for his name or shield number and did not remember if PO Herbert wore his shield pinned backwards.

PO Higgins acknowledged that PO Herbert searched § 87(2)(b) vehicle but did not see where in the vehicle he searched. PO Herbert told PO Higgins that he recovered a red knife from between

the driver's seat and center console, and PO Higgins considered the threat to be cleared at that point. § 87(2)(b) and § 87(2)(b) were then allowed back into the vehicle [see 07 Board Review].

PO Higgins' statement on the Stop, Question, and Frisk report § 87(2)(g) stated that § 87(2)(b) was observed with a red razorblade hanging out of his pocket. § 87(2)(g) § 87(2)(b) was frisked but not searched, and that a weapon was recovered [see 12 Board Review].

The memo books of PO Herbert and PO Higgins indicate that § 87(2)(b) was frisked and was found to be in possession of a red razorblade. Although PO Higgins' memo book did not detail where the knife was recovered from, PO Herbert's memo book revealed that it was recovered from between a seat and the center console of § 87(2)(b) car. PO Sargent's memo book states only that § 87(2)(b) was suspected of possessing a weapon and that a knife was observed [see 06, 08, 10 Board Review].

PO Sargent observed PO Herbert frisk § 87(2)(b) but denied that PO Herbert searched him. § 87(2)(g) After § 87(2)(b) was back in his vehicle, PO Sargent spoke with him. § 87(2)(b) asked for PO Sargent's name and shield number, which he provided. When PO Herbert and PO Higgins returned to § 87(2)(b) car, PO Herbert asked PO Sargent if § 87(2)(b) had requested his identifying information. When PO Sargent replied yes, PO Herbert verbally provided his name and shield number to § 87(2)(b) PO Sargent saw § 87(2)(b) write PO Herbert's information down on a piece of paper below his own information. PO Sargent did not see PO Herbert flash his shield quickly or hear § 87(2)(b) complain that he was unable to obtain PO Herbert's identifying information [see 07 Board Review].

In order to frisk an individual, an officer must have reasonable suspicion that the individual is armed (**People v. DeBour**, 40 N.Y.2d 210) [see 15 Board Review]. An officer may conduct a limited search of a vehicle when there is a substantial likelihood of a weapon being present in that vehicle, thereby posing an articulable and specific threat to the officers' safety, or if there is probable cause to believe that the vehicle contains contraband or evidence of a crime (**People v. Newman**, 96 AD2d, 1st Dept. 2012) [see 16 Board Review].

§ 87(2)(g)
Based on the above, it is recommended that **allegations D and E** be closed as **unsubstantiated**.

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It
is therefore recommended that **allegation F** be closed as **unsubstantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is therefore
recommended that **allegation G** be closed as **unsubstantiated**.

Pod: 1

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date